

SENATE No. 1044

The Commonwealth of Massachusetts

PRESENTED BY:

Joanne M. Comerford

To the Honorable Senate and House of Representatives of the Commonwealth of Massachusetts in General Court assembled:

The undersigned legislators and/or citizens respectfully petition for the adoption of the accompanying bill:

An Act relative to the efficient management and operation of the registries of probate.

PETITION OF:

NAME:	DISTRICT/ADDRESS:	
<i>Joanne M. Comerford</i>	<i>Hampshire, Franklin and Worcester</i>	
<i>Angelo J. Puppolo, Jr.</i>	<i>12th Hampden</i>	<i>1/22/2025</i>
<i>Jacob R. Oliveira</i>	<i>Hampden, Hampshire and Worcester</i>	<i>1/27/2025</i>
<i>John C. Velis</i>	<i>Hampden and Hampshire</i>	<i>2/19/2025</i>
<i>Vanna Howard</i>	<i>17th Middlesex</i>	<i>3/7/2025</i>

SENATE No. 1044

By Ms. Comerford, a petition (accompanied by bill, Senate, No. 1044) of Joanne M. Comerford, Angelo J. Puppolo, Jr., Jacob R. Oliveira, John C. Velis and others for legislation relative to the efficient management and operation of the registries of probate. The Judiciary.

[SIMILAR MATTER FILED IN PREVIOUS SESSION
SEE HOUSE, NO. 4364 OF 2023-2024.]

The Commonwealth of Massachusetts

In the One Hundred and Ninety-Fourth General Court
(2025-2026)

An Act relative to the efficient management and operation of the registries of probate.

Be it enacted by the Senate and House of Representatives in General Court assembled, and by the authority of the same, as follows:

1 SECTION 1. Section 2 of chapter 217 of the General Laws, as appearing in the 2022
2 Official Edition, is hereby amended by inserting, in line 14, after the word “including” the
3 following words:- the selection, appointment, and management of.

4 SECTION 2. Said chapter 217 is hereby further amended by striking out section 23, as so
5 appearing, and inserting in place thereof the following section:-

6 Section 23. The register of the respective courts of the probate and family court
7 department may, with the approval of the chief justice of the probate and family court, appoint
8 for a term of 3 years and may, with the approval of the chief justice, remove a first assistant

9 register of probate. Before entering upon the performance of their duties, a first assistant register
10 shall take the oath prescribed by the constitution. The appointments shall be as follows:

11 Barnstable, 1 first assistant register

12 Berkshire, 1 first assistant register

13 Bristol, 1 first assistant register

14 Essex, 1 first assistant register

15 Franklin, 1 first assistant register

16 Hampden, 1 first assistant register

17 Hampshire, 1 first assistant register

18 Middlesex, 1 first assistant register

19 Norfolk, 1 first assistant register

20 Plymouth, 1 first assistant register

21 Suffolk, 1 first assistant register

22 Worcester, 1 first assistant register.

23 SECTION 3. Said chapter 217 is hereby further amended by striking out section 23A, as
24 so appearing, and inserting in place thereof the following section:-

25 Section 23A. In addition to the first assistant registers of probate provided for in section
26 23, the registers of the respective courts of the probate and family court department for the

27 following counties may, with the approval of the chief justice of the probate and family court,
28 appoint for terms of 3 years and may, with the approval of the chief justice, remove assistant
29 registers with the same powers and duties. The appointments shall be as follows:

30 Barnstable, 2 assistant registers

31 Berkshire, 1 assistant register

32 Bristol, 2 assistant registers

33 Essex, 3 assistant registers

34 Franklin, 1 assistant register

35 Hampden, 2 assistant registers

36 Hampshire, 1 assistant register

37 Middlesex, 4 assistant registers

38 Norfolk, 2 assistant registers

39 Plymouth, 2 assistant registers

40 Suffolk, 2 assistant registers

41 Worcester, 2 assistant registers.

42 SECTION 4. Said chapter 217 is hereby further amended by striking out section 23B, as
43 so appearing, and inserting in place thereof the following section:-

44 Section 23B. The positions of administrative deputy assistant registers are hereby
45 eliminated. Notwithstanding the elimination of these positions or any other general or special law
46 to the contrary, a person employed as an administrative deputy assistant register of probate
47 pursuant to this section as of the effective date of this act shall continue to be employed as an
48 administrative deputy assistant register of probate and shall continue to serve in that capacity at
49 the pleasure of the register of probate for that county. The position of administrative deputy
50 assistant shall continue to meet the definitions of both confidential and managerial employees as
51 those terms appear in chapter 150E and any individuals continuing to be employed in that
52 capacity shall perform no official judicial duties.

53 SECTION 5. Said chapter 217 is hereby amended by striking out section 23D, as so
54 appearing, and inserting in place thereof the following section:-

55 Section 23D. In addition to the judicial case managers of the probate and family court
56 provided for in section 23C, the first justices of the respective courts of the probate and family
57 court department for the following counties may, with the approval of the chief justice of the
58 probate and family court, appoint and may, with the approval of the chief justice, remove
59 assistant judicial case managers with the same powers and duties. The appointments shall be as
60 follows:

61 Barnstable, 2 assistant judicial case managers

62 Berkshire, 1 assistant judicial case manager

63 Bristol, 5 assistant judicial case managers

64 Essex, 6 assistant judicial case managers

65 Franklin, 1 assistant judicial case manager
66 Hampden, 5 assistant judicial case managers
67 Hampshire, 1 assistant judicial case manager
68 Middlesex, 8 assistant judicial case managers
69 Norfolk, 5 assistant judicial case managers
70 Plymouth, 5 assistant judicial case managers
71 Suffolk, 5 assistant judicial case managers
72 Worcester, 6 assistant judicial case managers.

73 SECTION 6. Section 27A of said chapter 217, as so appearing, is hereby amended by
74 striking out, in line 4, the words “as such assistant”.

75 SECTION 7. Said chapter 217 is hereby amended by striking out section 28, as so
76 appearing, and inserting in place thereof the following section:-

77 Section 28. The first justice of the Suffolk county court may, subject to the approval of
78 the chief justice of the probate and family court, appoint a clerk who may administer the oaths
79 required in probate proceedings that are not prescribed by law to be administered by the judge or
80 register and shall perform such clerical and other duties as may be required by the first justice.
81 The clerk may be removed by the first justice, with the approval of the chief justice. The Suffolk
82 county register of probate may, with the approval of the chief justice, designate 6 employees as
83 deputy assistant registers with the same powers as assistant registers and may revoke such
84 designation with the approval of the chief justice. Four of the deputy assistant registers shall

85 receive as additional compensation an amount equal to 10 per cent of the annual salary of the
86 Suffolk county register of probate. Two of the deputy assistant registers shall receive as
87 additional compensation an amount equal to 5 per cent of the annual salary of the Suffolk county
88 register of probate. Notwithstanding the above, any person designated as a deputy assistant
89 register of probate pursuant to this section as of the effective date of this act shall continue to
90 serve in that capacity, as previously provided by this section prior to its amendment and shall
91 continue to receive 15 per cent of the annual salary of the Suffolk county register of probate until
92 they are no longer so designated, as previously provided by this section prior to its amendment.
93 The positions of associate deputy registers, previously provided for, are hereby eliminated.
94 Notwithstanding the elimination of these positions or any other general or special law to the
95 contrary, a person designated as an associate deputy register of probate pursuant to this section as
96 of the effective date of this act shall continue to serve in that capacity and receive the additional
97 compensation of 7.5 per cent of the annual salary of the Suffolk county register of probate, as
98 previously provided by this section prior to its amendment, until they are no longer so
99 designated.

100 SECTION 8. Said chapter 217 is hereby further amended by striking out section 29, as so
101 appearing, and inserting in place thereof the following section:-

102 Section 29. The first justice of the Middlesex county court may, with the approval of the
103 chief justice of the probate and family court, appoint a clerk who may administer the oaths
104 required in probate proceedings that are not prescribed by law to be administered by the judge or
105 register and shall perform such clerical and other duties as may be required by the first justice.
106 The clerk may be removed by the first justice with the approval of the chief justice. The
107 Middlesex county register of probate may, with the approval of the chief justice, designate 9

employees as deputy assistant registers with the same powers as assistant registers and with the approval of the chief justice remove a deputy assistant register. Six of the deputy assistant registers shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Middlesex county register of probate. Three of the deputy assistant registers shall receive as additional compensation an amount equal to 5 per cent of the annual salary of the Middlesex county register of probate. Notwithstanding the above, any person designated as a deputy assistant register of probate pursuant to this section as of the effective date of this act shall continue to be serve in that capacity, as previously provided by this section prior to its amendment and shall continue to receive 15 per cent of the annual salary of the Middlesex county register of probate until they are no longer so designated, as previously provided by this section prior to its amendment.

SECTION 9. Said chapter 217 is hereby further amended by striking out section 29A, as so appearing, and inserting in place thereof the following section:-

Section 29A. The first justice of the Dukes county court may, with the approval of the chief justice of the probate and family court, appoint a clerk who may administer the oaths required in probate proceedings that are not prescribed by law to be administered by the judge or register and shall perform such clerical and other duties as may be required by the first justice, with the approval of the chief justice. The clerk may be removed by the first justice with the approval of the chief justice. The Dukes county register of probate may, with the approval of the chief justice, designate 2 employees as deputy assistant registers with the same powers as assistant registers and with the approval of the chief justice remove a deputy assistant register. One deputy assistant register shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Dukes county register of probate. One deputy assistant register

shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the
Dukes county register of probate. Notwithstanding the above, any person designated as a deputy
assistant register of probate pursuant to this section as of the effective date of this act shall
continue to be serve in that capacity, as previously provided by this section prior to its
amendment and shall continue to receive 15 per cent of the annual salary of the Dukes county
register of probate until they are no longer so designated, as previously provided by this section
prior to its amendment.

SECTION 10. Said chapter 217 is hereby further amended by striking out section 29B, as
so appearing, and inserting in place thereof the following section:-

Section 29B. The first justice for the Nantucket county court may, with the approval of
the chief justice of the probate and family court, appoint a clerk who may administer the oaths
required in probate proceedings that are not prescribed by law to be administered by the judge or
register, and shall perform such clerical and other duties as may be required by the first justice,
with the approval of the chief justice. The clerk may be removed by the first justice with the
approval of the chief justice. The Nantucket county register of probate may, with the approval of
the chief justice, designate 2 employees as deputy assistant registers with the same powers as
assistant registers and with the approval of the chief justice remove a deputy assistant register.
One deputy assistant register shall receive additional compensation in an amount equal to 10 per
cent of the annual salary of the Nantucket county register of probate. One deputy assistant
register shall receive additional compensation in an amount equal to 5 per cent of the annual
salary of the Nantucket county register of probate.

SECTION 11. Said chapter 217 is hereby further amended by striking out section 29C, as so appearing, and inserting in place thereof the following section:-

Section 29C. The register of the Barnstable probate court may, with the approval of the chief justice of the probate and family court, designate 5 employees as deputy assistant registers with the same powers as assistant registers and with the approval of the chief justice remove a deputy assistant register. Three deputy assistant registers shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Barnstable county register of probate. Two deputy assistant registers shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Barnstable county register of probate.

SECTION 12. Said chapter 217 is hereby further amended by striking out section 29D, as so appearing, and inserting in place thereof the following section:-

Section 29D. The register of the Berkshire probate court may, with the approval of the chief justice of the probate and family court, designate 3 employees as deputy assistant registers with the same powers as assistant register and with the approval of the chief justice remove a deputy assistant register. Two deputy assistant registers shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Berkshire county register of probate. One deputy assistant register shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Berkshire county register of probate.

SECTION 13. Said chapter 217 is hereby further amended by striking out section 29E, as so appearing, and inserting in place thereof the following section:-

Section 29E. The register of the Hampden probate court may, with the approval of the chief justice of the probate and family court, designate 6 employees as deputy assistant registers

with the same powers as assistant registers and with the approval of the chief justice remove a deputy assistant register. Four deputy assistant registers shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Hampden county register of probate. Two deputy assistant registers shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Hampden county register of probate. Notwithstanding the above, any person designated as a deputy assistant register of probate pursuant to this section as of the effective date of this act shall continue to serve in that capacity and shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Hampden county register of probate.

SECTION 14. Said chapter 217 is hereby further amended by striking out section 29F, as so appearing, and inserting in place thereof the following section:-

Section 29F. The register of the Worcester probate and family court may, with the approval of the chief justice of the probate and family court, designate 6 employees as deputy assistant registers with the same powers as assistant registers and with the approval of the chief justice remove a deputy assistant register. Four deputy assistant registers shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Worcester county register of probate. Two deputy assistant registers shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Worcester county register of probate. Notwithstanding the above, any person designated as a deputy assistant register of probate pursuant to this section as of the effective date of this act shall continue to serve in that capacity, as previously provided by this section prior to its amendment and shall continue to receive 15 per cent of the annual salary of the Worcester county register of probate.

SECTION 15. Said chapter 217 is hereby further amended by striking out section 29G, as so appearing, and inserting in place thereof the following section:-

Section 29G. The register of the Bristol probate and family court may, with the approval of the chief justice of the probate and family court, designate 6 employees as deputy assistant registers with the same powers as assistant registers and with the approval of the chief justice remove a deputy assistant register. Four deputy assistant registers shall receive in addition to their salaries as employees, additional compensation in an amount equal to 10 per cent of the annual salary of the Bristol county register of probate. Two deputy assistant registers shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Bristol county register of probate.

SECTION 16. Said chapter 217 is hereby further amended by striking out section 29H, as so appearing, and inserting in place thereof the following section:-

Section 29H. The register of the Hampshire probate and family court may, with the approval of the chief justice of the probate and family court, designate 3 employees as deputy assistant registers with the same powers as assistant registers and with the approval of the chief justice remove a deputy assistant register. Two deputy assistant registers shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Hampshire county register of probate. One deputy assistant register shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Hampshire county register of probate. Notwithstanding the above, any person designated as a deputy assistant register of probate pursuant to this section as of the effective date of this act shall continue to serve in that capacity,

as previously provided by this section prior to its amendment and shall continue to receive 15 per cent of the annual salary of the Hampshire county register of probate.

SECTION 17. Said chapter 217 is hereby further amended by striking out section 29I, as so appearing, and inserting in place thereof the following section:-

Section 29I. The register of the Plymouth probate and family court may, with the approval of the chief justice of the probate and family court, designate 6 employees as deputy assistant registers with the same powers as assistant registers and with the approval of the chief justice remove a deputy assistant register. Four deputy assistant registers shall receive in addition to their salaries as employees, additional compensation in an amount equal to 10 per cent of the annual salary of the Plymouth county register of probate. Two deputy assistant registers shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Plymouth county register of probate.

SECTION 18. Said chapter 217 is hereby further amended by striking out section 29J, as so appearing, and inserting in place thereof the following section:-

Section 29J. The register of the Essex probate and family court may, with the approval of the chief justice of the probate and family court, designate 6 employees as deputy assistant registers with the same powers as an assistant register and with the approval of the chief justice remove a deputy assistant register. Four deputy assistant registers shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Essex county register of probate. Two deputy assistant register shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Essex county register of probate.

SECTION 19. Said chapter 217 is hereby further amended by striking out section 29K, as so appearing, and inserting in place thereof the following section:-

Section 29K. The register of the Franklin probate and family court may, with the approval of the chief justice of the probate and family court, designate 3 employees as deputy assistant registers with the same powers as an assistant register and with the approval of the chief justice remove a deputy assistant register. Two deputy assistant registers shall receive in addition to their salary as an employee, additional compensation in an amount equal to 10 per cent of the annual salary of the Franklin county register of probate. One deputy assistant register shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Franklin county register of probate.

SECTION 20. Said chapter 217 is hereby further amended by striking out section 29L, as so appearing, and inserting in place thereof the following section:-

Section 29L. The register of the Norfolk probate and family court may, with the approval of the chief justice of the probate and family court, designate 6 employees as deputy assistant registers with the same powers as an assistant register and with the approval of the chief justice remove a deputy assistant register. Four deputy assistant registers shall receive additional compensation in an amount equal to 10 per cent of the annual salary of the Norfolk county register of probate. Two deputy assistant registers shall receive additional compensation in an amount equal to 5 per cent of the annual salary of the Norfolk county register of probate. Notwithstanding the above, any person designated as a deputy assistant register of probate pursuant to this section as of the effective date of this act shall continue to serve in that capacity, as previously provided by this section prior to its amendment and shall continue to receive 15 per

260 cent of the annual salary of the Norfolk county register of probate until they are no longer so
261 designated, as previously provided by this section prior to its amendment.